



INDEPENDENT CONTRACTOR SERVICES AGREEMENT

THIS AGREEMENT is made and entered into this _____ (Date) by and between ENRICH ADVANCED EYE CARE (the "Company") and _____ (Contractor name) A Las Vegas Nevada Eye drops company with an address of 2780 S Jones Blvd. Suite 221 Las Vegas, NV 89146 (Company) and _____ (Contractor) a Sole Proprietor of legal age, Filipino, with a business address of _____.

ARTICLE 1: RECITALS AND REGULATORY FRAMEWORK

1.1 Nature of Engagement

The Company provides specialized administrative and clinical support services to healthcare providers. The Contractor is engaged as an independent entity to perform these services, acknowledging that this relationship is governed by the professional standards of *Enrich Advanced Eye Care* and applicable federal regulations.

1.2 Access to Protected and Proprietary Data

In the course of providing services, the Contractor will have access to **Confidential Information**, which includes, but is not limited to, trade secrets, optimized clinical workflows, and **Protected Health Information (PHI)** as defined under the **Health Insurance Portability and Accountability Act (HIPAA)**.

1.3 Valuation of Intellectual Property

The Contractor acknowledges that the Company has dedicated substantial resources, specialized clinical knowledge, and capital to develop its proprietary operational frameworks. This information constitutes a primary competitive advantage in the healthcare virtual assistance market.

1.4 Material Harm and Compliance

The Contractor agrees that any unauthorized disclosure or breach of Confidential Information—whether intentional or through negligence—would cause irreparable harm to the Company’s market position and could result in significant legal liabilities under HIPAA. Strict adherence to the Company’s security protocols and data privacy policies is a mandatory condition of this engagement.

ARTICLE 2: SCOPE OF ENGAGEMENT AND CLINICAL SERVICES

2.01 Independent Clinical Engagement

The Company hereby engages the Contractor on a non-exclusive basis to provide specialized clinical and administrative support services to the Company and its affiliated healthcare partners. This engagement is effective for the duration of the **Term**, as defined herein, and is subject to the rigorous performance standards established by the Company’s **Clinical Operations Leadership**.



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2.02 Authorized Clinical Services

The Contractor is authorized to perform the following core services ("the Services"), ensuring all activities remain compliant with **HIPAA Security and Privacy Rules**:

- **Real-Time Clinical Documentation:** Strictly execution and adhering the HIPAA Security and Privacy Rules guidelines following the standard operating procedure of the company using highly strategic skills and knowledge.
- **Clinical Administrative Support:** Execution of high-priority administrative tasks, including physician outreach and patient coordination, prioritizing the **"Phone-First" protocol** to minimize communication gaps.

Route Navigation and Logistics Management (New): Execute precise data entry within the Route Manager (Routific) system; all destination addresses must be recorded in the "Drop-off Settings" field to ensure field visibility. Maintain strategic scheduling buffers which applies a mandatory 5-minute administrative buffer to all appointment windows (e.g., 9:00-9:05 AM) to preserve the integrity of the live technician route including Technician navigation sync & operational triage monitoring which primarily responsible to populate "Notes" with precise parking and entry details to ensure seamless mobile app synchronization and technician access. Must maintain oversight of field and waiting room status; notify technicians or patients immediately for any delay exceeding 15 minutes.

2.03 Performance Standards and Resource Allocation

The Contractor accepts this engagement and commits to the following professional obligations:

- **Operational Efficiency:** The Contractor shall dedicate the necessary professional expertise and time to ensure all deliverables are completed within established clinical turnaround times.
- **Productivity and Compliance:** Services must be rendered in a productive manner, utilizing the Company's approved digital organization tools (e.g., **Workwave, Trello, and Clockify, and Routific**) for task tracking and time management.
- **Clinical Cooperation:** The Contractor shall maintain open and professional communication with the Company, participating in audits and workflow optimizations as required to maintain the integrity of the **Operational Manual**.

SECTION 2.02: CONTRACTOR REPRESENTATIONS AND REGULATORY COMPLIANCE

2.02.01 Legal Capacity and Authority

The Contractor represents and warrants that they possess the full legal capacity, power, and authority to enter into this Agreement and to perform the clinical and administrative obligations described herein. The Contractor further warrants that the execution of this Agreement does not violate any existing contract, law, or regulatory obligation to which they are subject.

2.02.02 Professional Registration and Tax Status

The Contractor affirms that they are a duly registered **Sole Proprietor** and/or **Self-Employed Taxpayer** in good standing within their jurisdiction of operation. As a condition of this engagement and to ensure adherence to the Company's financial and legal auditing standards, the Contractor provides the following identifying information:

- **Tax Identification Number (TIN):** _____
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- **Registered Business Address:**

2.02.03 Verification of Identity and Domicile

The Contractor warrants that the address provided above is their primary place of business and that all clinical services—specifically those involving **Protected Health Information (PHI)**—will be conducted from a secure, private location that meets the **HIPAA Physical Safeguard** requirements established in the **Enrich Advanced Eye Care Operational Manual**.

SECTION 2.03: OPERATIONAL AUTONOMY AND PERFORMANCE STANDARDS

2.03.01 Autonomy of Methodology

The Contractor shall retain full control and discretion over the specific methods, techniques, and internal procedures utilized to achieve the clinical and administrative outcomes defined in the **Scope of Services**. While the Company provides the framework through established **Standard Operating Procedures (SOPs)**, the Contractor is responsible for the professional execution and management of their own workflow.

2.03.02 Professional Availability and Service Delivery

The Contractor shall determine their own schedule and hours of operation; however, the Contractor acknowledges that the nature of medical support requires consistent and reliable availability to meet clinical turnaround times.

- **Accessibility:** The Contractor commits to remaining reasonably accessible during agreed-upon operational windows to ensure seamless coordination with the **Clinical Operations Lead** and affiliated medical professionals.
- **Timeliness:** All Services must be rendered in a productive and timely manner, utilizing the Company’s digital management tools to verify progress.



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2.03.03 Clinical Environment (HIPAA Compliance)

While the Contractor may choose the location of service delivery, they represent and warrant that any such location meets the **HIPAA Physical Safeguard** standards for the protection of **Protected Health Information (PHI)**.

- **Security:** The environment must be private, secure, and free from unauthorized observation or overhearing during the performance of live medical charting or physician outreach via the **"Phone-First" protocol**.
- **Infrastructure:** The Contractor is responsible for maintaining the necessary technical infrastructure (e.g., secure internet, hardware) to perform the Services at their chosen location.

2.04 Non-Conflict of Business Activities

The Contractor may engage in other professional activities or employment, provided such engagements do not create a conflict of interest with the Company or violate the non-disclosure and non-competition provisions set forth in Section 5.07.

2.05 Provision of Resources and Infrastructure

The Contractor is responsible for providing, at their own expense, all necessary equipment, software, secure workspace, and technical infrastructure required to perform the Services. All tools must meet the **HIPAA Technical and Physical Safeguard** standards established in the Company's clinical protocols.

2.06 Prohibition of Sub-Contracting

The Services described in this Agreement are personal in nature. The Contractor is strictly prohibited from delegating, subcontracting, or assigning any portion of the Services to third parties. All clinical and administrative duties must be performed exclusively by the individual named in this Agreement to ensure the security of **Protected Health Information (PHI)**.

2.07 Nature of Relationship and Legal Status

- **Independent Status:** This Agreement establishes a bona fide independent contractor relationship. It does not create an employer-employee, partnership, or joint venture relationship.
- **No Agency Authority:** The Contractor has no authority to act as an agent of the Company, enter into contracts, or incur liabilities on the Company's behalf.
- **Statutory Responsibility:** The Contractor assumes full responsibility for all tax obligations, insurance, and legal registrations required by their jurisdiction. Upon request, the Contractor shall provide documentation verifying compliance with all applicable local and international regulations.



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SECTION 2.08: HIPAA COMPLIANCE AND DATA SECURITY OBLIGATIONS

2.08.01 Regulatory Framework

The Contractor shall perform all Services in strict accordance with the **Health Insurance Portability and Accountability Act (HIPAA)**, the **HITECH Act**, and all applicable implementing regulations (45 C.F.R. Parts 160, 162, and 164). The protection of **Protected Health Information (PHI)** is a core condition of this engagement.

2.08.02 Authorized Utilization of PHI

- **Permitted Scope:** The Contractor may only access, use, or disclose PHI as necessary to fulfill the clinical and administrative duties defined in this Agreement.
- **Regulatory Alignment:** Any use or disclosure of PHI by the Contractor must align with the standards that would apply to the Company itself under the HIPAA Privacy Rule.

2.08.03 Safeguard Requirements

The Contractor shall implement and maintain comprehensive **Administrative, Physical, and Technical Safeguards** to ensure the confidentiality, integrity, and availability of electronic PHI (ePHI).

- **Threat Mitigation:** Safeguards must protect against reasonably anticipated threats, hazards, or unauthorized access.
- **Verification:** Upon request, the Contractor shall provide a written summary of the security protocols and infrastructure used to satisfy these clinical standards.

2.08.04 Mandatory Incident Reporting

- **Immediate Notification:** The Contractor must notify the Company via telephone or electronic mail immediately upon the suspicion of any Security Incident, unauthorized access, or breach of PHI.
- **Cooperation:** In the event of an incident, the Contractor shall provide full written details and cooperate extensively with the Company, regulatory bodies, and law enforcement to mitigate harm and prevent recurrence.

2.08.05 Disposition of Data Upon Termination

Upon the conclusion of the engagement, the Contractor shall:

1. **Return or Destroy:** Transfer all PHI (in any format) back to the Company's clients or execute a permanent, secure destruction of the data.
2. **Certification:** Provide formal written documentation certifying that no PHI remains in the Contractor's possession or within their local technical environment.



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2.12 Indemnification and Liability Allocation

The Contractor shall defend, indemnify, and hold harmless the Company, its affiliates, and their respective officers, directors, employees, and agents from any and all losses, damages, liabilities, legal actions, judgments, penalties, fines, or expenses (including reasonable legal fees) arising from:

- **Acts and Omissions:** Any bodily injury, death, or damage to tangible or personal property resulting directly from the Contractor's performance or negligence.
- **Breach of Contract:** Any violation of the representations, warranties, or professional obligations set forth in this Agreement, particularly those concerning **HIPAA compliance** and data security.
- **Tax and Statutory Liabilities:** Any failure by the Contractor to satisfy their tax, social security, or regulatory withholding obligations, including any associated interest or penalties.
- **Third-Party Claims:** Any claims brought by or on behalf of any individuals or entities associated with the Contractor.

Right of Offset: The Company reserves the right to satisfy any indemnification obligation, in whole or in part, by deducting the relevant amount from any outstanding payments due to the Contractor.

ARTICLE 3: COMPENSATION, INVOICING, AND TAX OBLIGATIONS

3.01 Service Fees and Tax Responsibility

- **Rate of Compensation:** The Company shall compensate the Contractor at a rate of **\$5-7.00 USD per hour** depending on the contractor's experiences for all verified Services rendered.
- **Performance Contingency:** The Company's obligation to provide compensation is contingent upon the Contractor's full compliance with the terms of this Agreement; the Company is not obligated to remit payment for any period during which the Contractor is in material default of their clinical or administrative duties.
- **Tax and Statutory Contributions:** The Contractor assumes sole responsibility for all applicable federal, state, and local taxes, social security contributions, and disability or unemployment insurance premiums in their respective jurisdiction.

3.02 Time-Tracking, Invoicing, and Payment Schedule

- **Mandatory Time-Tracking:** The Contractor is required to accurately log all billable hours using the Company's designated software (**Clockify**).
- **Automated Invoicing:** Logged hours shall be electronically submitted as a weekly invoice through the designated platform.
- **Dispute Resolution:** Any discrepancies or requests for manual adjustments must be submitted to the **Clinical Operations Lead** prior to the weekly cutoff established by the Company. Requests submitted after this deadline may be declined.
- **Disbursement Cycle:** Validated invoices will be processed and paid on a **bi-weekly schedule**.



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3.03 Income Reporting and Compliance

- **Record Keeping:** The Contractor shall maintain comprehensive personal records of all payments received for Services rendered under this Agreement.
- **Legal Reporting:** The Contractor is responsible for the accurate reporting of income and the timely payment of all due taxes, ensuring total compliance with the financial regulations of their country of residence.

ARTICLE 4: TERM AND TERMINATION PROTOCOLS

4.01 Duration of Agreement

The term of this Agreement shall commence upon the date of execution and continue until the successful completion of the Services, unless terminated earlier in accordance with the provisions set forth in Section 4.02.

4.02 Conditions for Termination

The Company reserves the right to terminate this Agreement under the following circumstances:

- **Immediate Termination:** Effective upon an incurable breach of contract or a material violation of **HIPAA Security Obligations**.
- **Termination for Cause:** Following the Contractor's failure to remedy a material breach within ten (10) days of receiving formal written notice.
- **Force Majeure & Capacity:** Termination due to the Contractor's death, or an incapacity/disability exceeding ninety (90) consecutive days that precludes the performance of essential clinical duties.
- **Settlement of Fees:** Upon termination, all earned but unpaid service fees shall be prorated based on verified work performed through the effective termination date.

4.03 Post-Termination Obligations

Upon the conclusion or termination of this Agreement, the Contractor shall immediately return to the Company all **Confidential Information** and proprietary assets within their possession or control. This includes all electronic and physical copies of internal SOPs, clinical workflows, and patient-related data.

ARTICLE 5: RESTRICTIVE COVENANTS AND DATA PROTECTION

5.01 Non-Disclosure and Confidentiality

The Contractor is strictly prohibited from directly or indirectly disclosing or utilizing **Confidential Information** for any purpose outside the scope of this Agreement, whether during or after the term of engagement.

- **Scope of Restriction:** This includes a permanent ban on using proprietary data for personal, commercial, or third-party gain.
- **Security Standards:** The Contractor shall implement all necessary measures to protect such information against unauthorized disclosure, misuse, or theft.



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- **Disposition:** At the Company's request, the Contractor shall promptly return or certify the secure destruction of all Confidential Information, in alignment with the **Data Sanitization** protocols of the Operational Manual.

5.02 Definition of Confidential Information

5.02.01 Scope of Confidentiality

"Confidential Information" encompasses all non-public, proprietary, and trade secret information belonging to the Company or its affiliates, regardless of the format (oral, written, or electronic). This includes, but is not limited to, strategic business plans, financial data, marketing strategies, client databases, and internal **Standard Operating Procedures (SOPs)**.

5.02.02 Categorization of Proprietary Assets

Confidential Information specifically includes, but is not limited to:

- **Technical & Clinical Data:** All specialized methodologies, software, research, experimental data, and clinical "know-how" developed by the Company.
- **Market Intelligence:** Client identities, purchasing patterns, vendor relationships, and proprietary marketing data.
- **Financial & Operational Data:** Pricing structures, material costs, internal compensation details, and specific operational practices.
- **Legal & Regulatory Data:** Any information the Company is legally mandated to protect, including **Protected Health Information (PHI)** under HIPAA.

5.02.03 Economic Value and Ownership

The Contractor acknowledges that this Confidential Information possesses independent economic value because it is not generally known to the public or competitors. The Company maintains reasonable security measures to ensure its secrecy. All such information remains the **sole and exclusive property** of the Company.

5.02.04 Materiality of Breach

The Contractor stipulates that any unauthorized use, disclosure, or failure to safeguard Confidential Information constitutes a **material breach** of this Agreement, justifying immediate termination and potential legal recourse.

5.03 Exclusions from Confidentiality

The restrictive covenants of this Agreement do not apply to information that:

- **Public Domain:** Is or becomes generally available to the public through no fault or unauthorized disclosure by the Contractor.
- **Prior Knowledge:** Was already in the Contractor's possession on a non-confidential basis prior to the commencement of this engagement.
- **Independent Development:** Is independently developed by the Contractor without the use of or reference to any Confidential Information.



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5.04 Authorized Disclosures and Legal Mandates

The Contractor may disclose Confidential Information only under the following specific conditions:

- **Legal Compulsion:** When required by a court order, subpoena, or a regulatory agency with appropriate jurisdiction.
- **Professional Consultation:** To the Contractor's legal or financial advisors, provided they are bound by confidentiality obligations identical to those in this Agreement.
- **Notification Requirement:** Except for privileged communications with legal counsel, the Contractor must notify the Company in writing as far in advance as possible before any disclosure. This notice must include the intent of the disclosure and the measures taken to preserve data secrecy.

5.05 Data Safeguarding and Technical Security

The Contractor shall implement all necessary administrative and technical measures to protect Confidential Information from loss, theft, or unauthorized access.

- **Storage Protocols:** Confidential Information must not be stored on any device accessible to unauthorized persons.
- **Infrastructure:** In alignment with **HIPAA Technical Safeguards**, all digital environments used for service delivery must remain secure and private.

5.06 Mandatory Cooperation for Protective Orders

If the Contractor receives a government or judicial demand for Confidential Information, they shall immediately notify the Company. The Contractor agrees to cooperate fully with the Company's efforts to seek a protective order or other appropriate legal remedies to prevent or limit the disclosure.

5.07 Non-Competition and Restrictive Period

The Contractor acknowledges that their role involves a high degree of trust and access to proprietary clinical systems.

- **The Restricted Period:** The Contractor agrees not to engage in competitive activities during the term of this engagement and for a period of **twelve (12) consecutive months** following the termination of the relationship.
- **Prohibited Activities:** During this period, the Contractor shall not provide services, advice, or maintain any affiliation (as an employee, consultant, or partner) with a **Competitor**.
- **Definition of Competitor:** A Competitor is defined as any entity providing medical virtual assistant services or similar clinical administrative support within any jurisdiction of the United States.

ARTICLE 6: INTELLECTUAL PROPERTY AND OWNERSHIP

6.01 Company Ownership of Intellectual Property

The Company shall be the sole and exclusive owner of all worldwide rights, titles, and interests in the results and proceeds of the Services. "Intellectual Property" (IP) includes all ideas, clinical workflows, designs, discoveries, and improvements developed—directly or indirectly—during the performance of this Agreement. This ownership applies to all patents, copyrights, and trade secrets, regardless of whether they were developed solely or jointly, or whether Company resources were utilized.



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6.02 Work Made for Hire and Assignment

The Contractor acknowledges that all IP provided to the Company constitutes a "**Work Made for Hire**" as defined under 17 U.S.C. § 101. To the extent any IP does not qualify as such, the Contractor hereby irrevocably assigns all rights, titles, and interests in said IP to the Company without further consideration.

6.03 Waiver of Moral Rights

Any assignment of copyright includes a full waiver of "moral rights," including the rights of paternity, integrity, and disclosure. The Contractor irrevocably waives all such claims in perpetuity, across all jurisdictions, regarding any IP resulting from the Services.

6.04 Cooperation and Power of Attorney

The Contractor shall execute any documents necessary to assist the Company in registering or enforcing its IP rights. If the Contractor is unavailable to sign such documents, they hereby irrevocably appoint the Company as their **Attorney-in-Fact** to act on their behalf with the same legal force and effect. This power is coupled with an interest.

6.05 Pre-existing Materials and Licensing

If the Contractor incorporates pre-existing materials into the Services, they retain ownership but grant the Company a worldwide, royalty-free, and sub-licensable license to use and modify such materials. Conversely, the Contractor has no right to use the Company's IP, trademarks, or brand names outside the scope of this Agreement.

6.06 Prohibition of Sub-Contracting

As established in the **Operational Manual**, the Contractor is strictly prohibited from utilizing subcontractors. All IP must be generated personally by the Contractor to ensure data integrity and security.

6.07 Mandatory Disclosure

The Contractor shall promptly disclose to the **Clinical Operations Lead** all inventions, improvements, or proprietary concepts conceived or developed during the term of this engagement.

6.08 Ownership of Derivative Developments

6.08.01 Exclusive Proprietary Rights

The Company shall maintain sole and exclusive ownership of all **Developments** created during the term of this engagement. The Contractor acknowledges that any such Developments are the proprietary property of the Company, and the Contractor retains no rights, titles, or interests therein.

6.08.02 Scope of Developments

For the purposes of this Agreement, "Developments" are defined as all worldwide rights and interests in the results, proceeds, and intellectual output derived from the Contractor's access to **Confidential Information**. This includes, but is not limited to:



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- **Workflow Enhancements:** Any modifications, alterations, or betterments made to existing clinical SOPs or administrative systems.
- **Operational Innovations:** Any enhancements, ideas, or discoveries that arise—directly or indirectly—from the Contractor's engagement with the Company's proprietary data or clinical environment.

6.08.03 Legal Assignment

To the extent that any such Developments do not automatically vest in the Company by operation of law, the Contractor hereby irrevocably assigns all rights to such modifications to the Company in perpetuity.

ARTICLE 7: DISPUTE RESOLUTION AND ARBITRATION

7.01 Governance and Precedence

The provisions of this Article shall govern all disputes arising under this Agreement and shall supersede any conflicting mediation or arbitration rules within any applicable jurisdiction.

7.02 Collaborative Conflict Resolution

The Company and the Contractor acknowledge that professional disagreements are most effectively resolved through direct, collaborative engagement at the operational level. Both parties commit to utilizing creative and proactive mechanisms to settle disputes internally before pursuing formal legal channels.

7.03 Mandatory Mediation

In the event that a resolution cannot be reached at the organizational level, both parties agree that any claim or dispute arising from this Agreement must be submitted to **Mediation**. Completion of the mediation process is a mandatory condition precedent to any further binding dispute resolution proceedings.

7.04 Binding Arbitration

Should mediation fail to result in a final settlement, the controversy shall be submitted to **Mandatory and Binding Arbitration**.

- **Procedural Rules:** The arbitration shall be conducted in accordance with the **Commercial Arbitration Rules of the American Arbitration Association (AAA)**.
- **Finality of Judgment:** The arbitrator's decision shall be final, and judgment upon the award rendered may be entered in any court of competent jurisdiction.

ARTICLE 8: MISCELLANEOUS AND GENERAL PROVISIONS

8.01 Mutual Acceptance and Execution

Each party affirms that they have conducted a comprehensive review of this Agreement, fully comprehend its implications, and voluntarily agree to be bound by its terms and conditions.

8.02 Successors and Permitted Assigns

The provisions of this Agreement shall be binding upon, and inure to the benefit of, the parties and their respective heirs, executors, administrators, legal representatives, and permitted successors. This clause remains subject to the strict prohibitions against subcontracting and assignment set forth elsewhere in this Agreement.



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8.03 Non-Waiver of Rights

The failure of either party to enforce strict performance of any provision or obligation herein shall not be construed as a waiver of the right to demand future compliance.

- **Specific Breach:** Consent to, or waiver of, a specific breach or default does not constitute a waiver of any subsequent or unrelated breach of the same or different obligations.

8.04 Governing Law and Jurisdiction

- **Applicable Law:** This Agreement shall be governed by, interpreted, and administered in accordance with the laws of **Las Vegas, Nevada**, and all applicable United States federal laws.
- **Exclusion of Conflicts:** The parties agree that no effect shall be given to any choice-of-law or conflict-of-law principles that would result in the application of the laws of any jurisdiction other than **Las Vegas, Nevada**.

8.05 Venue and Submission to Jurisdiction

- **Exclusive Venue:** Any legal action, suit, or proceeding arising from or relating to this Agreement—whether grounded in contract, tort, or otherwise—shall be brought exclusively in the state or federal courts located within the **State of Nevada**, in the county of or nearest to the Company's principal office.
- **Consent to Jurisdiction:** Each party irrevocably submits to the jurisdiction of these courts and waives any objection regarding an inconvenient forum (*forum non conveniens*).
- **Service of Process:** Delivery of any summons, notice, or document via registered mail to the address provided in this Agreement shall constitute effective and valid service of process.

8.06 Waiver of Jury Trial

The parties acknowledge that disputes arising under this Agreement may involve complex clinical and regulatory issues. Accordingly, each party irrevocably and unconditionally waives any right to a trial by jury for any cause of action related to this Agreement.

8.07 Equitable Relief and Remedies

The Contractor acknowledges that a breach or threatened breach of their obligations—particularly regarding **Confidential Information and HIPAA Security**—would cause the Company irreparable harm for which monetary damages would be an inadequate remedy.

- **Injunctive Relief:** In the event of such a breach, the Company shall be entitled to seek equitable relief, including temporary restraining orders, preliminary and permanent injunctions, and specific performance, without the requirement to post a bond.
- **Cumulative Remedies:** These equitable remedies are in addition to, and not in lieu of, any other legal rights or damages available to the Company.

8.08 Recovery of Legal Fees and Costs

In the event that any legal action or arbitration is initiated to enforce or interpret the terms of this Agreement, the prevailing party shall be entitled to recover all reasonable costs incurred, including but not limited to, reasonable attorneys' fees, expert witness fees, and court costs.



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8.09 Cumulative Remedies

Except as expressly limited herein, the rights and remedies provided under this Agreement are cumulative. They are intended to be in addition to, and not in lieu of, any other legal or equitable rights available to the parties.

8.10 Notice Protocols and Contact Information

All formal communications required by this Agreement must be in writing and shall be deemed delivered:

- **Direct Delivery:** Upon hand delivery with written confirmation.
- **Courier:** Upon receipt via a recognized overnight courier service.
- **Digital:** On the date of transmission via email (as a PDF) if sent during the recipient's business hours; otherwise, on the subsequent business day.
- **Registered Mail:** Two (2) days after being dispatched via certified or registered mail.

Official Notice Addresses:

- **To the Company:** 2780 S Jones Blvd., Suite 221, Las Vegas, NV 89146
- **Email:** inquiry@enrichprp.com
- **Attn:** Cj Johnson, CEO; Rheinalei Aubrey Co, Clinical Operations Lead.

8.11 Judicial Modification and Reform

If a court of competent jurisdiction finds any provision unenforceable due to its duration or geographic scope, the court is empowered to modify or "blue-pencil" the provision to the minimum extent necessary to make it enforceable while preserving the parties' original intent.

8.12 Severability and Good Faith Negotiation

The invalidity of any specific provision shall not affect the enforceability of the remainder of this Agreement. If a provision is struck, the parties agree to negotiate in good faith to replace it with a valid provision that reflects the original economic and clinical intent of the engagement.

8.13 Independent Legal Counsel

Each party acknowledges that this Agreement is the result of fair, arm's-length negotiations. By executing this document, the Contractor affirms they have been advised of their right to seek independent legal counsel and have had sufficient opportunity to do so.

8.14 Entire Agreement and Integration

This document constitutes the final and complete agreement between the parties regarding the subject matter herein. It supersedes all prior oral or written discussions, representations, or warranties. Both parties affirm they are relying solely on the written terms of this Agreement.

8.15 No Third-Party Beneficiaries

This Agreement is intended solely for the benefit of the signing parties and their permitted successors. It does not confer any legal rights or remedies upon any third party or creditor.



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8.16 Formal Amendments

No modification or amendment to this Agreement shall be valid unless it is executed in writing and signed by authorized representatives of both the Company and the Contractor.

8.17 Statutory Immunity for Protected Disclosures

In accordance with **18 U.S.C. § 1833(b)**, the Contractor is notified of certain immunities. The Contractor shall not be held criminally or civilly liable under trade secret law for disclosures made:

- In confidence to a government official or attorney solely for reporting a suspected legal violation.
- Within a sealed court filing during a legal proceeding. This section shall prevail over any conflicting confidentiality provisions within this Agreement.

8.18 Counterparts and Authenticity of Copies

This Agreement may be executed in multiple counterparts, each of which shall be considered an original document. A copy of this Agreement, when certified by any party as a true and accurate representation of the original, shall possess the same legal force and effect as the original instrument.

ARTICLE 9: DEFINITIONS AND INTERPRETATION

9.01 Defined Terms

For the purposes of this Agreement, the following terms shall be defined as follows:

- **Agreement:** Refers to this specific Independent Contractor Agreement and any subsequent written amendments.
- **Company:** Refers to Enrich Advanced Eye
- **Contractor:** The specific individual engaged to provide healthcare virtual assistant (HVA) services as named in the execution block of this document.
- **Competitor:** Any entity or individual engaged in medical virtual assistant services as further detailed in Section 5.07.
- **Confidential Information:** All proprietary, clinical, and trade secret data as defined in the protective covenants of Section 4.02.
- **Developments:** Any workflow enhancements, modifications, or IP generated during the term of service as defined in Section 5.10.
- **Independent Person:** A neutral third party with no personal, professional, or financial interest in the outcome of a dispute, utilized solely for the impartial resolution of controversies.
- **Intellectual Property (IP):** Defined as all proprietary assets and work product as detailed in Section 5.01.
- **Legal Representative:** Refers to an individual's executor, trustee, or guardian. In a corporate context, it includes directors, officers, consultants, and professional advisors.
- **Restricted Period:** The non-competition timeframe defined in Section 5.07.
- **Services:** The specific clinical and administrative duties defined in Section 1.01.
- **Term:** The duration of this engagement as defined in Section 3.01.



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9.02 Rules of Construction and Interpretation

The following standards shall apply to the interpretation of this Agreement:

- **Headings and Titles:** All Article and Section headings are included for organizational convenience only and shall not influence the legal interpretation or construction of the text.
- **Computation of Time:** References to "days" shall mean consecutive calendar days. "Business days" shall exclude Saturdays, Sundays, and official banking holidays observed by the Federal Reserve.
- **Effective Delivery:** Communication is considered formally delivered upon:
 1. Personal hand-delivery.
 2. Receipt of certified mail at the last known address.
 3. Confirmed transmission of a facsimile or electronic mail (PDF).
- **Illustrative Language:** The terms "include," "includes," and "including" are used for illustration and shall be interpreted as "including without limitation."
- **Obligation vs. Discretion:** The word "shall" denotes a mandatory requirement or duty. Terms such as "may" or "is authorized to" denote absolute discretion granted to the decision-maker without further obligation.
- **Neutral Construction:** This Agreement shall be interpreted fairly and neutrally. No presumption shall be made against the drafting party in the event of an ambiguity.

COMPANY: Enrich Advanced Eye Care

By: CJ JOHNSON

Its: CHIEF EXECUTIVE OFFICER (CEO)

CONTRACTOR SIGNATURE: _____ **Date:** _____

NAME: _____



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